

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

GRETCHEN KENNEDY,

Index No.:

Plaintiff,

Date Purchased:

-against-

SUMMONS

THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER ERIC LEE OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE OFFICER BRIAN MULKERN OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT BARBARA ARROYO OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT SIOBHAN O'KEEFE OF THE 20TH POLICE PRECINCT SHIELD # 6, NEW YORK CITY POLICE LIEUTENANT STEVEN CHANTEL OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE CAPTAIN JAMES F. DENNEHY III OF THE 24TH POLICE PRECINCT, NEW YORK CITY POLICE OFFICER CHEN ZHAN WITH BADGE # 30519, and NEW YORK CITY POLICE OFFICERS JOHN/JANE DOES 1-20 WHO WERE INVOLVED IN THE IMPRISONMENT, TASERING, AND EXCESSIVE FORCE COMMITTED AGAINST THE PLAINTIFF,

Plaintiff designates
New York County as
the place of trial.

The basis of venue is
the county in which
the cause of action
arose.

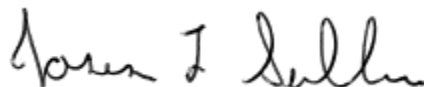
Defendants.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer on the Plaintiff's Attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 7, 2015

SULLIVAN & BRILL, LLP
Attorneys for Plaintiff



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Defendants' Addresses:

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New York, New York 10024
And c/o 1 Police Plaza
New York, New York 10038

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NEW YORK CITY POLICE CAPTAIN JAMES F. DENNEHY III
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And c/o 1 Police Plaza
New York, New York 10038

NEW YORK CITY POLICE OFFICER CHEN ZHAN
WITH BADGE # 30519
c/o 20th Police Precinct, 120 W. 82nd St.
New York, New York 10024
And c/o 1 Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

GRETCHEN KENNEDY,

Plaintiff,

-against-

Index No.:

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER ERIC LEE OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE OFFICER BRIAN MULKERN OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT BARBARA ARROYO OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT SIOBHAN O'KEEFE OF THE 20TH POLICE PRECINCT SHIELD # 6, NEW YORK CITY POLICE LIEUTENANT STEVEN CHANTEL OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE CAPTAIN JAMES F. DENNEHY III OF THE 24TH POLICE PRECINCT, NEW YORK CITY POLICE OFFICER CHEN ZHAN WITH BADGE # 30519, and NEW YORK CITY POLICE OFFICERS JOHN/JANE DOES 1-20 WHO WERE INVOLVED IN THE IMPRISONMENT, TASERING, AND EXCESSIVE FORCE COMMITTED AGAINST THE PLAINTIFF,

Defendants.

Plaintiff, GRETCHEN KENNEDY, by her attorneys, SULLIVAN & BRILL, LLP, complaining of Defendants, alleges:

1. Plaintiff GRETCHEN KENNEDY was and is a resident of the County of New York, State of New York.

2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, was and still is a municipal corporation organized and existing under the laws of the State of New York.

3. On or about April 23, 2014, Plaintiff served a Notice of Claim in writing upon THE CITY OF NEW YORK.

4. THE CITY OF NEW YORK acknowledged receipt of the Notice of Claim by stamp dated April 23, 2014.

5. On or about September 18, 2014, Plaintiff served an Amended Notice of Claim in writing upon THE CITY OF NEW YORK.

6. THE CITY OF NEW YORK acknowledged receipt of the Amended Notice of Claim by stamp dated September 18, 2014.

7. At least thirty (30) days have elapsed since the service of the Notice of Claim and Amended Notice of Claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one (1) year and ninety (90) days after the happening of the event upon which the claims are based.

8. Plaintiff has complied with the request of the municipal defendants for an oral examination pursuant to Section 50-h of the General Municipal law by testifying at a 50-h hearing on October 3, 2014.

9. On April 12, 2014, Plaintiff resided at 33 W. 69th St., Third Fl., New York, NY 10023.

10. The Plaintiff currently resides at 359 W. 54th St., Apt. 6FN, New York, NY 10019.

11. At all times mentioned hereinafter, THE CITY OF NEW YORK, its agents, servants, and employees (hereinafter “City”) operated, maintained and controlled the New York City Police Department (hereinafter “NYPD”), including all the police officers and employees thereof.

12. NEW YORK CITY POLICE OFFICER ERIC LEE OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE OFFICER BRIAN MULKERN OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT BARBARA ARROYO OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT SIOBHAN O’KEEFE OF THE 20TH POLICE PRECINCT SHIELD # 6, NEW YORK CITY POLICE LIEUTENANT STEVEN CHANTEL OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE CAPTAIN JAMES F. DENNEHY III OF THE 24TH POLICE PRECINCT, NEW YORK CITY POLICE OFFICER CHEN ZHAN WITH BADGE # 30519, and NEW YORK CITY POLICE OFFICERS JOHN/JANE DOES 1-20 WHO WERE INVOLVED IN THE IMPRISONMENT, TASERING, AND EXCESSIVE FORCE COMMITTED AGAINST THE PLAINTIFF (hereinafter “Defendant-officers”) were employed by the City on April 12, 2014 and at all times herein were acting in such capacity as the agents, servants, and/or employees of the City within the scope of their employment and under the direction of the City and the NYPD.

13. At all times hereinafter mentioned and specifically on or about April 12, 2014 at approximately 3:30 AM (hereinafter “time of incident”) at or near the location of the 33 W. 69th St., New York, New York County, State of New York (hereinafter “location of incident”), Defendant-officers individually and collectively were acting within the scope of their employment and under the direction of the City and the NYPD as their agents, servants, and/or employees. Consequently, the City is liable under the doctrine of *respondeat superior* for all officers’ tortious actions.

14. On or about the date of incident and at all relevant times hereunder, Defendant-officers acted as police officers and were required to follow the rules and regulations as contained in the NYPD Patrol Guidelines.

15. On or about the date of incident, Defendant-officers were present at the location of incident.

16. On or about the date of incident at the location of the incident, Plaintiff was wrongfully touched, grabbed, tasered, punched, kicked, searched, handcuffed, seized, and otherwise subjected to excessive force by Defendant-Officers without any lawful basis.

17. Plaintiff was not charged with any violation of the criminal laws of The State of New York.

18. During her imprisonment, Plaintiff was taken against her will by the City and Defendant-officers in police vehicles and/or a City ambulance to New York

Presbyterian Hospital (also known as Weill Cornell Hospital and hereinafter “hospital”).

19. Plaintiff was admitted and confined to the hospital and not released until April 12, 2014 at 6:30 PM. Plaintiff was admitted to the hospital because the City and Defendant-officers told hospital staff, among other things, that Plaintiff was on PCP, or Phencyclidine. The City and Defendant-officers also told hospital staff that Plaintiff was physically violent and an Emotionally Disturbed Person. These statements caused Plaintiff to be admitted and confined to the hospital and psychologically monitored. While in the hospital, Plaintiff was injected with an unknown substance, interviewed multiple times, and held against her will until April 12, 2014 at 6:30 PM.

20. Plaintiff never appeared before any judge in any court of law as a result of this incident.

21. Plaintiff had committed no crime but was subjected to the imprisonment and excessive force of the City and Defendant-officers.

22. For all times in which the City and Defendant-officers were present at the location of incident, Plaintiff was wearing only a shirt and was naked from the waist down.

**AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST
AS TO DEFENDANTS THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER ERIC LEE OF THE 20TH POLICE PRECINCT,
NEW YORK CITY POLICE OFFICER BRIAN MULKERN OF THE
20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT
BARBARA ARROYO OF THE 20TH POLICE PRECINCT, NEW YORK
CITY POLICE SERGEANT SIOBHAN O’KEEFE OF THE 20TH
POLICE PRECINCT SHIELD # 6, NEW YORK CITY POLICE**

**LIEUTENANT STEVEN CHANTEL OF THE 20TH POLICE
PRECINCT, NEW YORK CITY POLICE CAPTAIN JAMES F.
DENNEHY III OF THE 24TH POLICE PRECINCT, NEW YORK CITY
POLICE OFFICER CHEN ZHAN WITH BADGE # 30519, AND NEW
YORK CITY POLICE OFFICERS JOHN/JANE DOES 1-20 WHO
WERE INVOLVED IN THE IMPRISONMENT, TASERING, AND
EXCESSIVE FORCE COMMITTED AGAINST THE PLAINTIFF**

23. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked “1” through “22” with the same force and effect as if more fully and at length set forth herein.

24. That beginning on or about the date of incident at or near the location of incident, the City and Defendant-officers intentionally handcuffed, restrained, and imprisoned Plaintiff, without any just cause, and held her against his will until she was released from the hospital.

25. That Plaintiff was falsely imprisoned and remained imprisoned while transported in police vehicles, ambulances, and held at the hospital.

26. That said imprisonment was caused by the City and Defendant-officers, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that Plaintiff was guilty of any crimes, or that the City or Defendant-officers had just cause to imprison Plaintiff.

27. Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to her imprisonment by the City and Defendant-officers, and was forced to submit to the aforesaid imprisonment entirely against her will.

28. That the City and Defendant-officers, as set forth above, intended to confine Plaintiff; Plaintiff was conscious of the confinement; Plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.

29. That by reason of the aforesaid false imprisonment and detention of Plaintiff, her freedom was restricted, she was subjected to great indignity, humiliation, pain and great distress of mind and body.

30. That by reason of the aforesaid, Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE IMPRISONMENT AS TO DEFENDANTS THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER ERIC LEE OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE OFFICER BRIAN MULKERN OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT BARBARA ARROYO OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT SIOBHAN O'KEEFE OF THE 20TH POLICE PRECINCT SHIELD # 6, NEW YORK CITY POLICE LIEUTENANT STEVEN CHANTEL OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE CAPTAIN JAMES F. DENNEHY III OF THE 24TH POLICE PRECINCT, NEW YORK CITY POLICE OFFICER CHEN ZHAN WITH BADGE # 30519, AND NEW YORK CITY POLICE OFFICERS JOHN/JANE DOES 1-20 WHO WERE INVOLVED IN THE IMPRISONMENT, TASERING, AND EXCESSIVE FORCE COMMITTED AGAINST THE PLAINTIFF

31. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked "1" through "30" with the same force and effect as if more fully and at length set forth herein.

32. That beginning on or about the date of incident at or near the location of incident, the City and Defendant-officers intentionally handcuffed and imprisoned Plaintiff, without any just cause, and held her against her will and

caused her to be held against her will until she was released from the hospital on April 12, 2014 at 6:30 PM.

33. That Plaintiff was falsely imprisoned and remained imprisoned while held by the City and Defendant-officers until the time she was released from the hospital.

34. That said imprisonment was caused by the City and Defendant-officers without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that Plaintiff was guilty of any crimes, or that the City and Defendant-officers had just cause to imprison Plaintiff.

35. Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to her imprisonment by the City and Defendant-officers, and was forced to submit to the aforesaid imprisonment entirely against her will.

36. That the City and Defendant-officers intended to confine Plaintiff; Plaintiff was conscious of the confinement; Plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.

37. That by reason of the aforesaid false imprisonment and detention of Plaintiff, her freedom was restricted and she was subjected to great indignity, humiliation, pain and great distress of mind and body.

38. That by reason of the aforesaid, Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT,
BATTERY, AND EXCESSIVE FORCE AS AGAINST THE CITY OF
NEW YORK, NEW YORK CITY POLICE OFFICER ERIC LEE OF
THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE OFFICER**

BRIAN MULKERN OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT BARBARA ARROYO OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT SIOBHAN O'KEEFE OF THE 20TH POLICE PRECINCT SHIELD # 6, NEW YORK CITY POLICE LIEUTENANT STEVEN CHANTEL OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE CAPTAIN JAMES F. DENNEHY III OF THE 24TH POLICE PRECINCT, NEW YORK CITY POLICE OFFICER CHEN ZHAN WITH BADGE # 30519, AND NEW YORK CITY POLICE OFFICERS JOHN/JANE DOES 1-20 WHO WERE INVOLVED IN THE IMPRISONMENT, TASERING, AND EXCESSIVE FORCE COMMITTED AGAINST THE PLAINTIFF

39. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked "1" through "38" with the same force and effect as if more fully and at length set forth herein.

40. That on that date of incident and at the location of incident, Plaintiff was assaulted, battered, and subjected to excessive force.

41. The City and Defendant-officers, while acting within the scope of their employment, touched, grabbed, tasered, punched, kicked, searched, handcuffed, seized, and otherwise subjected Plaintiff to excessive force.

42. The City and Defendant-officers had no reason or just cause to assault, batter, and subject Plaintiff to excessive force. Said conduct was without the Plaintiff's consent or permission, and was far in excess of any force necessary to effectuate Plaintiff's imprisonment and/or control her person. Said force was excessive given the nature and/or lack of any complaint concerning Plaintiff and any potential alleged threat she may have posed. Further, said conduct was unprivileged because there was no lawful basis to imprison or control Plaintiff and she was never in violation of any Penal or criminal law.

43. That the City and Defendant-officers acting as agents on behalf of the City and within the scope of their employment, intentionally, willfully, and/or maliciously assaulted, battered, and subjected Plaintiff to excessive force, in that they had the ability to cause imminent harmful or offensive bodily contact and intentionally did acts which threatened to and did cause such contact to Plaintiff. That said acts caused apprehension of such offensive contact and actual offensive conduct to Plaintiff, when officers in a hostile and/or offensive manner touched Plaintiff without her consent and with the intent to commit offensive bodily contact to Plaintiff.

44. That the City is liable for the actions of its employees, including the above-named agents, servants, and/or employees for conduct committed within the scope of their employment.

45. That by reason of the aforesaid intentional assault, battery, and excessive force, Plaintiff suffered and still continues to suffer from physical, emotional, and psychological injuries to her body and mind, and suffered conscious pain and suffering.

46. That by reason of the aforesaid, Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST
DEFENDANT THE CITY OF NEW YORK FOR NEGLIGENT
TRAINING, HIRING, RETENTION, SUPERVISING, AND
PROMOTING**

47. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked “1” through “46” with the same force and effect as if more fully and at length set forth herein.

48. That the City was negligent, careless and reckless in hiring, retaining, supervising, promoting, training, and retraining its employees and Defendant-officers, in that said officers, as employees of the City, were not qualified to be hired, retained, or promoted as police officers and lacked the experience, skill, training, and ability to be employed by the City as police officers.

49. That the City failed to exercise due care and caution in its hiring, retaining, promoting, and training practices; in that the City failed to adequately test, analyze test results, and/or investigate said officers’ backgrounds; the City failed to adequately screen said officers; failed to adequately monitor officers; failed to properly discipline officers who violate the NYPD Patrol Guidelines; failed to adequately monitor officers’ Central Personnel Indexes (hereinafter “CPI”); failed to properly discipline and monitor officers who are investigated by NYPD, the Civilian Complaint Review Board, and the Internal Affairs Bureau; failed to properly train and retrain officers; and in that the City and Defendant-officers were otherwise careless, negligent, and reckless.

50. That the aforesaid occurrence – a false imprisonment, assault, battery, and excessive force, and the resulting injuries to mind and body – was caused wholly and solely by reason of the negligence or deliberate indifference of the City

and Defendant-officers without any negligence on the part of Plaintiff contributing thereto.

51. That by reason of the aforesaid, Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION AGAINST THE CITY
OF NEW YORK FOR VIOLATION OF PERSONAL
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. § 1983 and
*MONELL v. DEPT. OF SOCIAL SERVICES OF CITY OF NEW
YORK*, 436 U.S. 658 (1978)**

52. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked “1” through “51” with the same force and effect as if more fully and at length set forth herein.

53. That on the date of incident and at the location of incident, the City and Defendant-officers were present as part of their regular and official employment as police officers for the City and were acting under the color of law and within the scope of their employment.

54. That the City caused, developed, maintained, and/or created a policy and/or procedure and/or custom and/or practice, or decision of a final policymaker, and acted with deliberate indifference to patterns and/or police practices violating constitutional rights of its citizens, which caused the violations of Plaintiff’s rights, including the following and as outlined in more detail below: improperly holding, imprisoning, and/or detaining individuals without probable cause and justification; excessive and arbitrary use of force; excessive use of Tasers; failing to adopt industry standards for the use of Tasers on Emotionally Disturbed Persons

(hereinafter “EDPs”), including but not limited to involving mental health professionals in the handling of EDPs; failing to have a policy for the use of Tasers on non-EDPs; failing to train and retrain officers in the use of force and Tasers; illegal use of police equipment; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence and investigate when allegations of police misconduct are alleged; condoning silence within the police department regarding misconduct; failing to properly supervise, train, investigate, or discipline officers; falsely swearing out criminal complaints and police paperwork; falsifying evidence and NYPD paperwork; committing perjury; failing to respond to evidence of corruption; and failing to intervene to prevent the above-mentioned practices.

55. That as to all of the violations alleged in this fifth cause of action, the City knew to a moral certainty that its employees would confront situations like the subject incident involving Plaintiff, in which decisions regarding use of force would need to be made.

56. That as to all of the violations alleged in this fifth cause of action, the City has a history of its employees mishandling similar situations similar to the subject incident, which present City’s employees with choices of the sort that training or supervision would make less difficult.

57. That as to all of the violations alleged in this fifth cause of action, the wrong choice by City employees will frequently cause the deprivation of citizen’s constitutional rights, as in the subject incident.

I. The City's Excessive Force and Taser Policies, Procedures, Customs, and Practices.

58. The City's policies, procedures, customs, and practices improperly train officers in the use of force and encourage the use of excessive force.

59. The City's policies, procedures, customs, and practices are inadequate regarding the escalation of force and use of Tasers in police incidents.

60. Because only a small number of officers have been issued Tasers, those officers have not been properly trained as to the appropriate situational use of Tasers and the potential risks associated with their use.

61. The City has refused to adopt industry standards and best practice policies that are in use in other police departments across the country regarding the use of force, including but not limited to the use of Tasers.

62. The only reference to the use of Tasers in the NYPD Patrol Guidelines in effect at the time of the incident is limited to their use on EDPs.

63. The City's policies, procedures, customs, and practices lack any requirement that mental health professionals be involved in any capacity during incidents with EDPs.

64. The City's policies, procedures, customs, and practices lack any provisions for mental health training or retraining for NYPD officers in how to identify EDPs. NYPD Patrol Guidelines fail to define or train officers in identifying EDPs by any industry-accepted mental health standard.

65. The City's policies, procedures, customs, and practices fail to train officers about the appropriate techniques to deescalate EDPs.

66. The City's policies, procedures, customs, and practices fail to train officers about the appropriate techniques in the use of force.

67. The City's policies, procedures, customs, and practices lack any mention of using Tasers on non-EDPs.

68. The City's officers and Defendant-officers were inadequately trained and supervised in the implementation of NYPD EDP policies and in NYPD policies for the use of force, including but not limited to the use of Tasers.

69. In particular, Crisis Intervention Teams (hereinafter "CIT") composed of police officers who underwent 40-80 hours of additional training in responding to EDP calls, are used in some fashion in 2,000 communities and have been adopted state-wide in Maine, Connecticut, Ohio, Georgia, Florida, Utah, and Kentucky. Cities that have adopted CIT models include Seattle, Albuquerque, Portland, Los Angeles, Houston, Rochester, and Chicago.

70. The City has refused to adopt a CIT model.

71. The City has failed to require that mental health professionals and/or CIT-trained officers respond to EDP situations, and instead relies on Emergency Service Unit (hereinafter "ESU") personnel to respond to EDPs. ESU personnel receive no training and/or inadequate training in how to identify, deescalate, and handle EDPs.

72. The City has failed to discipline and monitor officers with CPIs of 3.1 or higher. The City has failed to stop equipping officers with CPIs of 3.1 or higher

with firearms and/or Tasers, in contravention of recommendations by the RAND Corporation's 2008 study (cited below).

73. The City has failed to adopt any of the U.S. Department of Justice, Office of Community Oriented Policing Services' 2011 Electronic Control Weapon Guidelines, items 1-50. In particular, the City has failed to adopt the Guidelines' suggested training and qualification requirements for employees who use electronic controlled weapons (hereinafter "ECW"), including but not limited to Tasers. Further, the City has failed to implement the Guidelines' recommendations with respect to the use of ECWs and Tasers, how to effectively train law enforcement personnel in how and when to use ECWs and Tasers, and in what manner ECW and Taser data should be collected, stored, and analysed.

74. As a result of the above-mentioned failures and policies, the City has a policy, procedure, custom, and/or practice of not training, providing inadequate training, and improperly supervising its officers and supervisors in responding to situations involving EDPs where Tasers may potentially be used.

75. The above failures were a contributing factor to the incident involving Plaintiff and resulting injuries because the City had no appropriate policy in place for such a situation and had not properly trained or supervised its officers in how to handle this situation.

76. The failure of the City and Defendant-officers who responded to the scene to follow the NYPD EDP policies in effect at the time of the incident also led to and/or contributed to Plaintiff's injuries.

77. The failure of NYPD supervisors to follow the NYPD EDP policies in effect at the time of the incident and their failure to adequately supervise the officers under their commands contributed to Plaintiff's injuries.

78. That as Plaintiff was lawfully and properly at the subject location, the City and Defendant-officers failed to properly use verbal commands to communicate with Plaintiff and instead resorted to excessive force to imprison and control Plaintiff.

79. The City and Defendant-officers failed to consult and/or use a psychological and/or mental health professional to communicate with Plaintiff.

80. The existence of aforesaid unconstitutional customs, policies, patterns, and/or practices may be inferred from repeated occurrences of similar wrongful conduct, as documented below.

81. The following are instances of an unconstitutional policy, procedure, custom, and/or practice of the City and/or the NYPD with respect to EDPs, the use of Tasers, excessive force, and the inadequacy of the NYPD's policies, procedures, customs, and practices with respect to training and retraining its officers in how to use force, including but not limited to Tasers:

a) The NYPD handles over 100,000 EDP calls per year, and as such, knows that its officers will encounter EDPs and that efforts to deescalate and/or use force will be necessary.

b) In 1984, Eleanor Bumpurs was deemed psychotic by a City psychiatrist and in attempting to evict her from public housing, NYPD officers shot

and killed her. As a result of the killing, the NYPD developed protocols for handling EDPs, but failed to include in said protocols the involvement of mental health professionals.

c) In 1999, NYPD officers shot and killed Gidone Busch, who was bipolar.

d) In 2007, NYPD officers shot and killed two EDPs named Khiel Coppin and David Kostovski in Brooklyn.

e) In 2008, NYPD officers shot EDP Iman Morales with a Taser in New York County, causing him to fall to his death. Mr. Morales was naked at the time of the incident.

f) In 2008, NYPD officer Maurice Harrington brutally beat Michael Cephus with a baton on Delancey Street in Manhattan.

g) According to a 2008 RAND Corporation research study, which was commissioned at the request of then-NYPD Commissioner Raymond W. Kelly, NYPD maintains a log book in which the use of Taser devices is noted. Between January 1, 2006 and November 10, 2006, Taser devices were employed 258 times. In 2006, NYPD reported that its Taser use was “effective” 89% percent of the time, or not effective 11% of the time. It is unknown how the NYPD defined “effectiveness.”

h) According to a 2008 RAND Corporation research study, which was commissioned at the request of then-NYPD Commissioner Raymond W. Kelly, RAND recommended that the “NYPD should ensure and document that trainees

have mastered basic and complex use of force tactics and decision-making skills. This should be done by updating computer simulations . . . , ensuring that recruits pass proficiency standards . . . , enhancing record keeping for all training but particularly in-service training with data input over wireless modems to a master training file for each MOS (member of service) and with training and other personnel data being part of a relational data system that would make all personnel information available for administrative and analytic use . . . , exploring alternatives to the current semi-annual firearm-requalification paradigm to provide enhanced firearm instruction that would focus on the officer's proficiency rather than just the score on a static target." The RAND study also recommended that NYPD expand its review of tactics used during firearm and Taser shootings. The RAND study also noted that officers with a CPI of 3.1 or higher per year of service were three times more likely to discharge a weapon than other officers from the population of similar officers. This is important because as the RAND study notes, "NYPD might pay particular attention to shootings involving officers with an annual CPI-point average in excess of 3.1 to make sure that the officers did everything appropriate before discharging their firearms."

i) In 2012, NYPD officers suffocated and killed EDP Shauna Francis in Queens.

j) On May 5, 2013, NYPD officers used excessive force against Deion Fludd in the Rockaway Avenue subway station. The officers claimed that Mr. Fludd

was hit by a subway train to cover up the force they used against him. Mr. Fludd died as a result of that incident.

k) On September 14, 2013, NYPD officers shot at an unarmed EDP named Glenn Broadnax, injuring two bystanders in Times Square. NYPD officers then used a stun gun on Mr. Broadnax, who was taken to Bellevue Hospital. According to then-NYPD Commissioner Raymond Kelly, Mr. Broadnax was searched and found with only a wallet in his right rear pocket.

l) In 2013, the Civilian Complaint Review Board receive 5,410 complaints, 53% of which contained one or more allegations of improper force.

m) On July 17, 2014, NYPD officers from the 120th police precinct, including but not limited to police officer Daniel Pantaleo, used excessive force against Eric Garner, causing Mr. Garner to die within minutes. As a result of this homicide, on December 4, 2014 the NYPD and specifically its commissioner William Bratton, instituted mandatory retraining of all officers in the use of force, de-escalation of interactions with citizens, and interactions with EDPs.

n) On July 22, 2014, NYPD Police Commissioner William J. Bratton publicly stated that NYPD was undertaking a review of its training and tactics regarding officers' use of force, including but not limited to Tasers. Commissioner Bratton ordered all police officers to go through mandatory retraining in the use of force. Commissioner Bratton stated: "As I have reviewed that incident and reviewed the training of the department, it is my belief that we are going to have to do more than just a review of Staten Island."

o) On September 23, 2014, Sandra Amezquita, who was pregnant at the time, was slammed to the ground by NYPD officers, beaten with a baton, and Tasered on her abdomen/stomach area.

II. The City's Policies, Procedures, Customs, and Practices in Failing to Respond to Evidence of Corruption and Officers Falsifying Evidence and Committing Perjury

82. That the City's policies, procedures, customs, and practices fail to discipline officers, fail to respond to evidence of corruption and officers who falsify evidence, falsify NYPD paperwork, or commit perjury.

83. That the City's policies, procedures, customs, and practices fail to adequately investigate allegations of police misconduct.

84. That the City's policies, procedures, customs, and practices fail to protect police officers who expose police misconduct.

85. That the City's policies, procedures, customs, and practices encourage its officers to falsify evidence and commit perjury.

86. The existence of aforesaid unconstitutional customs, policies, patterns, and/or practices may be inferred from repeated occurrences of similar wrongful conduct, as documented below.

87. The following are instances of an unconstitutional custom, policy, pattern, and/or practice of the City with respect to falsifying evidence, perjury, negligent hiring, training, retention, and disciplining and/or failing to respond to evidence of corruption:

a) Schoolcraft v. City of New York, 10-CV-6005 (RWS) (S.D.N.Y.): police officer alleges that he was arrested and committed to a psychiatric facility in retaliation for exposing an NYPD police precinct's policies and practices of summons and arrest quotas, falsifying evidence and police records, perjury.

b) In New York County Supreme Court, People v. William Eiseman (Ind. No. 2999-2010), NYPD Sergeant William Eiseman pled guilty to perjury and falsifying police records, "admit[ing] to faking a marijuana case against one man and cocaine-related charges against another – and training young [officers] to falsify paperwork to sidestep legal safeguards." Supreme Court Justice Juan Merchan commented that Sgt. Eiseman's admissions "paint a picture of a police officer who has challenged and undermined the integrity of the entire system we have here."

c) In late 2009, a former NYPD officer in the Bronx, Pedro Corniel, was charged with perjury for claiming to have caught a burglar "red-handed," when, in fact, two other officers had made the arrest and handed the arrest off to Mr. Corniel. The suspect was released.

d) Lin v. City of New York, 09-CV-1936 (PGG) (S.D.N.Y.): officers arrest person for photographing an arrest of a bicyclist and sign criminal complaint with facts contradicted by video evidence.

e) Colon v. City of New York, 09-CV-0008 (E.D.N.Y.) Order dated November 25, 2009, denying THE CITY OF NEW YORK'S motion to dismiss on Iqbal grounds in case where police officers were fired and prosecuted for falsifying evidence in a an alleged buy and bust operation, the Honorable District Court Judge

Weinstein wrote: “Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration – through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department – there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.”

f) In response to the Honorable Judge Weinstein’s ruling of November 2009 Colon v. City of New York, 09-CV-00008 (E.D.N.Y.), in which he noted a “widespread... custom or policy by the city approving illegal conduct” such as lying under oath and false swearing, NYPD Commissioner Raymond Kelly acknowledged, “When it happens, it’s not for personal gain. It’s more for convenience.”

g) People v. Pogan, 06416-2008 (Sup. Ct., N.Y. Co.): police officer purposefully swore out false complaint and was convicted of falsifying police records.

h) MacNamara v. City of New York, 04-CV-9216 (RJS) (JCF) (S.D.N.Y.):

court ordered THE CITY OF NEW YORK to disclose all arrest reports related to the arrests of 1,800 people at the 2004 Republican National Convention as evidence of perjured sworn statements by police officers to cover-up false arrests.

i) Powers v. City of New York, 04-CV-2246 (NGG), 2007 U.S. Dist. LEXIS 27704 (E.D.N.Y.): police officer alleges unlawful retaliation by NYPD officers after testifying about corruption within the NYPD.

j) Ariza v. City of New York, 93-CV-5287 (CPS), 1996 U.S. Dist. LEXIS 20250 at*14 (E.D.N.Y.): police officer alleges retaliation and harassment in response to his allegations about a racially-discriminatory workplace. In deciding a motion for summary judgment, the Court held that the police officer had established proof of a policy to retaliate against police officers who expose police misconduct and a failure to train in the police department.

k) The Report of the Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police Department (“Mollen Commission Report”), dated July 7, 1994, states: “In the face of this problem [of corruption], the [NYPD] allowed its systems for fighting corruption virtually to collapse. It has become more concerned about the bad publicity that corruption disclosures generate than the devastating consequences of corruption itself. As a result, its corruption control minimized, ignored and at times concealed corruption rather than root it out. Such an institutional reluctance to uncover corruption is not surprising. No institution wants its reputations tainted especially a Department that needs the public’s confidence and partnership to be effective. A weak and

poorly resourced anti-corruption apparatus minimizes the likelihood of such taint, embarrassment and potential harm to careers. Thus there is a strong institutional incentive to allow corruption efforts to fray and lose priority which is exactly what the Commission uncovered. This reluctance manifested itself in every component of the Department's corruption controls from command accountability and supervision, to investigations, police culture, training and recruitment. For at least the past decade, the system designed to protect the Department from corruption minimized the likelihood of uncovering it."

l) On October 9, 2013, Civilian Complaint Review Board (hereinafter "CCRB") Deputy Executive Director Marcos Soler wrote to the Board Members of the CCRB that from January-August 2013, the NYPD declined to prosecute 29% of all substantiated CCRB cases against its officers.

m) The Mollen Commission concluded that police perjury and falsification of official records is probably the most common form of police corruption facing the criminal justice system. It concluded: "Regardless of the motives behind police falsifications, what is particularly troublesome about this practice is that it is widely tolerated by corrupt and honest officers alike, as well as their supervisors. Corrupt and honest officers told us that their supervisors knew or should have known about falsified versions of searches and arrests and never questioned them . . . What breeds this tolerance is a deep-rooted perception among many officers of all ranks within the Department that nothing is really wrong with compromising facts to fight crime in the real world. Simply put, despite the devastating consequences of

police falsifications, there is a persistent belief among many officers that it is necessary and justifies, even if unlawful. As one dedicated officer put it, police officers often view falsification as, to use his words, ‘doing God’s work’ – doing whatever it takes to get a suspected criminal off the streets. This attitude is so entrenched, especially in high-crime precincts, that when investigators confronted one recently arrested officer with evidence of perjury, he asked in disbelief, ‘What’s wrong with that? They’re guilty.’”

88. That said above-acts, inclusive of paragraphs 1-87 herein, constituted an illegal seizure of Plaintiff and deprived her of her rights and liberties as set forth in the Constitutions of the United States and of the State of New York and under 42 U.S.C. § 1983 and 42 U.S.C. § 1986.

89. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States of America, violated Plaintiff’s right to be secure in her person, and the City and Defendant-officers used excessive and unlawful force.

90. That the City and Defendant-officers on the date of incident performed their duties under the color of the policies, statutes, ordinances, rules, and regulations of the City.

91. That Plaintiff did not commit any illegal act, either before or at the time she was falsely imprisoned, assaulted, battered, subjected to excessive force, and deprived of her constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. § 1983 and the Constitution of the State of New York.

92. That by reason of the aforesaid, Plaintiff was injured in mind.

93. That by reason of the aforesaid, Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorney's fees, and expert fees as provided by 42 U.S.C. § 1988, and such other relief as the court may deem just and proper.

AS AND FOR AN SIXTH CAUSE OF ACTION FOR VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. § 1983 AS AGAINST NEW YORK CITY POLICE OFFICER ERIC LEE OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE OFFICER BRIAN MULKERN OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT BARBARA ARROYO OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT SIOBHAN O'KEEFE OF THE 20TH POLICE PRECINCT SHIELD # 6, NEW YORK CITY POLICE LIEUTENANT STEVEN CHANTEL OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE CAPTAIN JAMES F. DENNEHY III OF THE 24TH POLICE PRECINCT, NEW YORK CITY POLICE OFFICER CHEN ZHAN WITH BADGE # 30519, AND NEW YORK CITY POLICE OFFICERS JOHN/JANE DOES 1-20 WHO WERE INVOLVED IN THE IMPRISONMENT, TASERING, AND EXCESSIVE FORCE COMMITTED AGAINST THE PLAINTIFF, AS AGENTS, SERVANTS, AND/OR EMPLOYEES OF THE CITY OF NEW YORK

94. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked "1" through "93" with the same force and effect as if more fully and at length set forth herein.

95. That at all times hereinafter mentioned, Defendant-officers were each employed by the City and were acting under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules, and regulations of the City.

96. That at all times hereinafter mentioned, Defendant-officers were acting pursuant to orders and directives from the City.

97. That during all times hereinafter mentioned, Defendant-officers acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of the City and that Defendant-officers were acting under the color and pretense of law and engaged in the illegal conduct set forth in this complaint to the injury of Plaintiff and deprived her of the rights, privileges, and immunities secured to her by the First, Fourth, Sixth, Eighth, and Fourteenth Amendments to the Constitution of the United States, the laws of the United States, the Constitution of the State of New York, the laws of the State of New York, and 42 U.S.C. § 1983 and 42 U.S.C. § 1986.

98. That the unlawful and illegal conduct of Defendant-officers deprived Plaintiff of the following rights, privileges, and immunities secured to her by the Constitution of the United States and of the State of New York:

a) The right of Plaintiff to be secure in her person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States;

b) The right of Plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States;

c) The right to have freedom of speech;

d) The right to be free from cruel and unusual punishment;

e) The right to due process of law.

99. That by reason of the aforesaid violations committed by Defendant-officers against Plaintiff – false imprisonment, assault, battery, use of excessive force, and falsifying evidence and NYPD paperwork – Defendant-officers violated Plaintiff's rights and privileges as provided to her in the Constitution of the United States of America and the Constitution of the State of New York, and laws thereto. Defendant-officers and the City, through a policy of deliberate indifference, violated 42 U.S.C. § 1983.

100. That as a proximate result of Defendants-officers' actions, Plaintiff was subjected to great indignities and humiliation, and pain and distress of mind and body.

101. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers, and upon information and belief will continue to suffer great physical and mental pain.

102. That by reason of the aforesaid, Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts and seeks compensatory damages, plus punitive damages, costs, attorney's fees, expert fees, as set forth and provided by 42 § U.S.C. 1988, and such other relief as the court may deem just and proper.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. § 1983 AS AGAINST NEW YORK CITY POLICE OFFICER ERIC LEE OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE OFFICER BRIAN MULKERN OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT BARBARA ARROYO OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT SIOBHAN O'KEEFE OF THE 20TH POLICE PRECINCT SHIELD # 6, NEW YORK CITY POLICE LIEUTENANT STEVEN CHANTEL

OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE CAPTAIN JAMES F. DENNEHY III OF THE 24TH POLICE PRECINCT, NEW YORK CITY POLICE OFFICER CHEN ZHAN WITH BADGE # 30519, AND NEW YORK CITY POLICE OFFICERS JOHN/JANE DOES 1-20 WHO WERE INVOLVED IN THE IMPRISONMENT, TASERING, AND EXCESSIVE FORCE COMMITTED AGAINST THE PLAINTIFF FOR FAILURE TO INTERVENE

103. That Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked “1” through “102” with the same force and effect as if more fully and at length set forth herein.

104. Members of the NYPD have an affirmative duty to assess the constitutionality of interactions between their fellow members of service and civilians and to intervene where they observe or have knowledge that another member of the NYPD or other law enforcement agency violated a civilian’s constitutional right(s).

105. That Defendant-officers witnessed and/or had knowledge of Defendant-officers’ and the City’s unlawful and/or unconstitutional imprisonment of and excessive force against Plaintiff. Said actions were without probable cause or other legal justification and were based on facts known to the officers to be false. However, Defendant-officers failed to take any action or make any effort to intervene, halt, or protect Plaintiff from being unlawfully, unconstitutionally, and/or wrongfully imprisoned, assaulted, battered, and subjected to excessive force.

106. That by reason of the aforesaid, Plaintiff was injured in mind and body.

107. That by reason of the aforesaid, Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages,

costs, attorney's fees, and expert fees as provided by 42 U.S.C. § 1988, and such other relief as the court may deem just and proper.

AS AND FOR AN EIGHTH CAUSE OF ACTION FOR VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. § 1983 AS AGAINST NEW YORK CITY POLICE OFFICER ERIC LEE OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE OFFICER BRIAN MULKERN OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT BARBARA ARROYO OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE SERGEANT SIOBHAN O'KEEFE OF THE 20TH POLICE PRECINCT SHIELD # 6, NEW YORK CITY POLICE LIEUTENANT STEVEN CHANTEL OF THE 20TH POLICE PRECINCT, NEW YORK CITY POLICE CAPTAIN JAMES F. DENNEHY III OF THE 24TH POLICE PRECINCT, NEW YORK CITY POLICE OFFICER CHEN ZHAN WITH BADGE # 30519, AND NEW YORK CITY POLICE OFFICERS JOHN/JANE DOES 1-20 WHO WERE INVOLVED IN THE IMPRISONMENT, TASERING, AND EXCESSIVE FORCE COMMITTED AGAINST THE PLAINTIFF FOR ABUSE OF PROCESS

108. That Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked "1" through "107" with the same force and effect as if more fully and at length set forth herein.

109. By the conduct and actions described above, Defendant-officers employed regularly issued process against Plaintiff compelling the performance or forbearance of prescribed acts. The purpose of activating the process was intent to harm Plaintiff without economic or social excuse or justification, and the City and Defendant-officers were seeking a collateral advantage or corresponding detriment to Plaintiff, which was outside the legitimate ends of the process. The acts and conduct of Defendant-officers were the direct and proximate cause of injury and damage to Plaintiff and violated her statutory and common law rights as guaranteed

by the laws and Constitution of the United States of America and the State of New York.

110. That by reason of the aforesaid, Plaintiff was injured in mind and body.

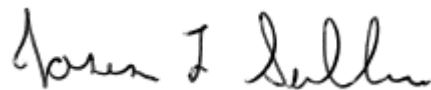
111. That by reason of the aforesaid, Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorney's fees, and expert fees as provided by 42 U.S.C. § 1988, and such other relief as the court may deem just and proper.

112. That this action falls within one or more of the exceptions to the limitation of joint and several liability included in Article 16 of the CPLR.

WHEREFORE, Plaintiff demands judgment against Defendants in an amount having a present value which exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction of this matter, together with interest, costs and disbursements, plus attorney's fees, punitive damages, and such other relief as the court deems just and proper.

Dated: New York, New York
January 7, 2015

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